

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

ANUPAMA KESHAVAN,	)	Case Number: FDI-20-794041
	)	
Petitioner	)	Hearing Date: July 28, 2026
	)	
VS.	)	Hearing Time: 9:00 AM
	)	
FRANKS STIENHAMS,	)	Department: 404
	)	
Respondent	)	Presiding: AI MORI
	)	

OTHER REVIEW HEARING; REQUEST FOR ORDER: ATTORNEY FEES AND COSTS

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the Court makes the following findings and orders:

I. Custody and Visitation

A. **Procedural History**

- 1) Anupama Keshavan (Mother) and Frank Stienhans (Father) have one minor child together, Inca (DOB 9/28/2009, age 16). In a Judgment filed 8/24/2024, the parties agreed to share joint legal custody of Inca, with Mother to have primary physical custody and Father to have parenting time every Sunday dinner and phone calls 3 times a week.
- 2) On 11/13/2025, Father filed a request for a change in custody and parenting time stating the parties had significantly deviated from their prior custody agreement, Mother was abusive towards Inca and had alienated him, and Inca was unhappy in Mother’s home. Father stated he was willing to move to Los Angeles so Inca can continue her studies at Cal State Los Angeles, where she is a college student. Mother opposed the request, denied the abuse allegations, and stated she had made efforts to include Father in coparenting. She stated she would agree to longer

1 weekend visits for Father, for Inca to stay with Father during the summer of 2026 while works as
2 an intern at UCSF, and that assuming the summer is successful and Father moves to Los Angeles,
3 for the parties to have a week-on, week-off parenting time schedule. The Court ordered a Tier II
4 interview of Inca and Family Court Services prepared a Tier II report for the hearing.

5 3) At a 5/21/2026 hearing, the Court accepted the parties' agreement that Inca will stay with Father
6 during the summer of 2026. The Court ordered a follow-up Tier II interview of Inca and set the
7 matter for a review hearing on 7/28/2026.

8 4) Both parties filed update declarations, which the Court has reviewed and considered. Mother
9 states, among other things, that she had insufficient time to review the prior Tier II report that was
10 prepared for the 5/21/2026 hearing. She responds to the statements Inca made during the prior
11 Tier II interview. She requests that Inca be ordered to provide both parties with screenshots of her
12 academic records; she states Father has told her he cannot access them without Inca's permission.
13 Mother states she has decided to defer to the Court's determination regarding custody for Inca
14 rather than pursue a custody evaluation. Father states, among other things, that Inca has been in
15 his custody since 5/21/2026 and is doing well. He states he encourages, and does not monitor,
16 communication between Inca and Mother, and that Mother and Inca saw each other in Los
17 Angeles on 7/6/2026. He plans to move to Los Angeles and intends to cooperate with Mother's
18 request to have her gain access to Inca's school records.

19 5) Family Court Services conducted a follow-up Tier II interview of Inca, who was clear in stating
20 that she wishes to continue living with Father until she completes her final year of college. She
21 stated she would be open to having dinner with Mother once a month, but with Father also
22 present, and that she would want any weekly phone or video calls with Mother to last no longer
23 than 15 minutes.

24 **B. Findings and Orders**

25 1) This Court has jurisdiction to make child custody orders in this case under the Uniform Child
26 Custody Jurisdiction and Enforcement Act. A violation of this order may subject the party in
27 violation to civil or criminal penalties, or both. The country of habitual residence of the minor
28 child is the United States.

- 2) The Court finds it is in Inca's best interest for the parties to continue sharing joint legal custody of Inca and for Inca to continue living with Father in Los Angeles. Father shall continue to encourage Inca to maintain communication with Mother.
- 3) Mother shall have at least monthly in-person lunch or dinner visits with Inca, to be arranged by Mother and Inca. Father, upon Inca's request, and at his discretion, may be present during these visits. In addition, Mother shall be entitled to have at least one weekly phone or video call with Inca, as a check-in (no minimum or maximum time restrictions) to see how Inca is doing.
- 4) The parties shall work together to ensure that both parties have access to Inca's school records. If the parties are unable to access Inca's school records directly due to school policy or for whatever other reason, Father, as the primary custodial parent, shall ensure that Inca shares with both parties, at minimum, the following school information: (1) list of course names and credits for each school term including Spring 2026 (if not provided already); (2) midterm grades; (3) final grades; and (4) unofficial school transcripts at the end of each academic term including Spring 2026.
- 5) If either party has any new requests relating to custody and parenting time, they may file a new request for order.

II. Financial Issues

A. Procedural History

- 1) At the prior 3/26/2026 hearing, the Court modified child support effective 11/13/2025, requiring Father to pay Mother \$2,920 per month in base guideline child support and ordered the parties to share equally Inca's CSU tuition and related costs. The XSpouse child support calculation is based on a 15% timeshare for Father. The Court maintained the following orders set forth in the Judgment filed 8/24/2024: paragraph V(24) – Smith / Ostler child support order; V(25) – Medical Insurance and Expenses; V(26) Wage Assignment; and V(27) Tax Dependency Exemption. The Court did not modify the spousal support order within the Judgment which requires Father to pay Mother \$5,319 per month in spousal support. The Court further set a review hearing on child support for 5/21/2026.

- 2) On 4/14/2026, Mother filed a Request for Order seeking \$56,615 in need-based attorney's fees and costs.
- 3) On 4/14/2026, Mother's attorney filed a declaration stating Mother had incurred \$6,615.45 in fees and costs as of 3/31/2026. Mother's attorney stated Mother needed an additional \$50,000 in fees and costs to allow Mother to participate in a custody trial.
- 4) At the prior 5/21/2026 hearing, the Court declined to modify child support, but set a future hearing date of 7/28/2026 to review child support and to adjudicate Mother's request for attorney's fees.
- 5) On 7/15/2026, Father filed a Responsive Declaration and Memorandum of Points and Authorities asking that the Court deny Mother's fee request. In addition to other arguments made, Father states that Mother only reports a 1.54% return on her \$1.9 million in investments and she could be earning a higher rate of return on her investments.
- 6) The Court notes that in his Amended Income and Expense Declaration filed 5/13/2026, Father states that he earns \$3,718 per month in dividends and interest. Father reports owning \$2.3 million in investments. This represents a 1.9% rate of return.
- 7) On 7/17/2026, Mother filed a Supplemental Declaration wherein Mother reduces her fee request to \$11,386.65. Mother states that she is requesting both need-based fees as well as attorney's fees sanctions under Family Code section 271 for Father's "failure to make any attempt to settle shit matter outside of court and specifically for his inclusion of Inca's declaration and personal records which he had filed in the public record." Mother states that since her initial request for attorney's fees and costs, she has incurred an additional \$3,437.50 in fees and costs for her attorney to prepare for and attend the 5/21/2026 declaration and to prepare the instant declaration. Mother states that she anticipates incurring additional fees of approximately two hours for her attorney to prepare for and attend the 7/28/2026 hearing. Mother therefore requests fees and costs in the amount of \$11,386.65.
- 8) The Court notes that neither party included requests to modify child support in their most recent pleadings, nor did either party submit a proposed Statement of Support Calculation.

B. Findings and Order

- 1) Mother's request for attorney's fees sanctions under Family Code section 271 is denied.

- 1 2) The Court finds that there is a substantial disparity in access to funds to pay legal fees; that Father
2 has the ability to pay for his own fees as well as Mother's, and that the amount Mother is
3 requesting in attorney's fees and costs (\$11,386.65) is just, reasonable, and necessary. The Court
4 hereby awards to Mother \$11,386.65 in need-based attorney's fees and costs. Father shall pay this
5 amount to Mother no later than 8/15/2026.
- 6 3) The Court sets a future hearing date of **Tuesday, 10/22/2026 at 9:00 AM in Dept. 404** to review
7 child support for the period of Summer 2026 as well as child support for the period commencing
8 Fall 2026. At least 20 calendar days prior to the next hearing date, both parties shall file and serve
9 updated Income and Expense Declarations. At least 10 calendar days prior to the next hearing
10 date, both parties shall file and serve proposed Statements of Support Calculations, which shall
11 include XSpouse calculations for Summer 2026 and the period commencing Fall 2026. Pending
12 the next hearing date, the parties shall meet and confer to attempt to reach an agreement regarding
13 child support calculations for these two time periods.

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15 **III. Other Orders**

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- 17 1) Father's attorney is admonished to prepare and submit the Findings and Orders After Hearing for
18 the 3/26/2026 and 5/21/2026 hearing dates forthwith, as previously ordered by this Court.
- 19 2) Father's attorney shall prepare the Findings and Order After Hearing for the 7/28/2026 hearing
20 date.
- 21 3) **Preparation of Order:** If you are directed by the court to prepare the order after hearing – within
22 10 calendar days of the hearing you must either: (a) Serve the proposed order to the other
23 party/counsel for approval, and follow the procedures set forth in CA Rules of Court, Rule
24 5.125(c), or (b) If the other party did not appear or the matter was uncontested, submit the
25 proposed order after hearing directly to the court. Failure to submit the order after hearing within
26 10 days may allow the other party to prepare a proposed order and submit it to the court in
27 accordance with CA Rules of Court, Rule 5.125(d).
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